

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LILIANA BELTRAN-AGUIRRE,

Petitioner

VS.

DANIEL ALEXANDER MARTINEZ SANCHEZ,

Respondent

) Case Number: FDV-21-815915

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Liliana Beltran-Aguirre (Mother) and Daniel Alexander Martinez Sanchez (Father) have one minor child together, Adrian (DOB 12/26/2020, age 5). On 2/9/2022, the Court issued a 3-year restraining order against Father and awarded sole legal and sole physical custody to Mother, with no visitation to Father. At hearings that took place between 6/5/2024 and 1/18/2025, the Court ordered supervised visits for Father.
- 2) On 6/16/2025, the parties entered into a stipulation for unsupervised visits for Father every Sunday from 10am until 5pm and every Tuesday afternoon. On 9/4/2025, the Court denied Father's request for overnight visits but issued a holiday schedule for Father that included one overnight visit, maintained the Sunday and Tuesday visits, added a Thursday afternoon visit, and indicated it was inclined to award overnight visits at the next hearing.
- 3) In a tentative ruling issued for a 1/27/2026 review hearing, the Court expressed concern about the number of visits Father had missed but accepted his explanation that they were the result of car issues, which had since been resolved. The parties met and conferred before the 1/27/2026

1 hearing and accepted the Court's tentative ruling maintaining the Tuesday and Thursday
2 afternoon visits and awarding Father one overnight visit on alternating weekends commencing
3 2/27/2026, from 10am on Saturday to 10am on Sunday. The Court ordered that Mother shall have
4 a phone or video call with Adrian on Saturday night before bedtime, to take place at 7:30pm or
5 another mutually agreeable time. The Court set a further review hearing for 5/5/2026.

- 6 4) On 4/23/2026, Mother filed an update declaration stating Father missed 19 visits between
7 1/20/2026 and 4/21/2026 for various reasons, including car issues, Father's mistakenly believing
8 it was a Wednesday, oversleeping, choosing not to exercise his visits during the school strike, a
9 court appearance, not being able to make it to pick-up time, job orientations and work-related
10 issues, and his illness. Mother asks that if the Court is inclined to maintain overnight visits, she
11 would request that the Tuesday, Thursday, and alternating weekend visits continue, with Father
12 being required to provide updates as to what Adrian is eating during his visits, and for all other
13 orders from the 1/27/2026 hearing to remain in full force and effect.

- 14 5) Father has not filed an update declaration as of the time of this tentative ruling.

15 **B. Findings and Orders**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 child is the United States.
- 20 2) The Court finds it is in Adrian's best interests to maintain the current order for sole legal custody
21 and sole physical custody to Mother, with parenting time for Father as set forth in the Findings
22 and Order after the 1/27/2026 hearing. Father shall endeavor to make all scheduled visits and
23 shall provide Mother with as much notice as possible if he will miss a visit.
- 24 3) All other orders not in conflict with these orders shall remain in full force and effect.
- 25 4) The Court will prepare the Findings and Order After Hearing.
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